

Smt. Neelam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 October 2023 · 2023:AHC:194882-DB · Writ-C No. 32323 of 2023 · **Writ disposed; 6.14 instalment application to be considered as per law.**

HEADNOTE

After the Electricity Department withdrew the earlier order, the writ was disposed of by consent. The consumer, ready to pay the sum fixed on a fresh provisional assessment, was left to move the Executive Engineer within two weeks under clause 6.14 of the U.P. Electricity Supply Code, 2005, and the Competent Authority was to consider that application as per law within a further two weeks.

FACTUAL SUMMARY

Smt. Neelam filed Writ-C No. 32323 of 2023 against the State electricity department in the Allahabad High Court. On 3 October 2023 the Bench recorded, *prima facie*, that she was unnecessarily harassed, and counsel for Purvanchal Electricity Distribution Nigam Limited said remedial measures would follow a short indulgence. On 10 October 2023 her counsel stated that the Department had withdrawn the earlier order and the grievance stood redressed. She was ready to pay the amount fixed on a fresh provisional assessment and sought two instalments under clause 6.14.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalment application left to the authority

HOLDING

Once the Department has withdrawn the earlier order and the consumer is ready to pay the amount fixed on a fresh provisional assessment, the High Court will not keep the writ pending to itself allow instalments. If she moves an application to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005 within two weeks, the Competent Authority shall consider it as per law within a further two weeks, and the writ stands disposed of on that direction. ¶ 3-4

PRINCIPLE TAGS

installment-payment-clause-6.14 The petitioner sought to deposit the freshly assessed dues in two instalments under clause 6.14. The Court did not allow the instalments; it directed that an application to the Executive Engineer within two weeks be considered as per law by the Competent Authority within a further two weeks. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO DEPOSIT THE FRESHLY ASSESSED DUES IN TWO INSTALMENTS UNDER CLAUSE 6.14

Left to the Competent Authority to consider the application as per law. ¶ 3